

On Court's query, learned Additional Prosecutor General under instructions of Investigating Officer (present in Court) and after himself going through the available record apprises that aforementioned allegation levelled against the petitioner has been supported by the Medicolegal Examination Certificate of the injured and though firstly kind of weapon was mentioned as "blunt" in the MLC (Medicolegal Examination Certificate), however, subsequently it was rectified and corrected as "firearm" by the Medical Officer with his initials; relevant portion of the Medicolegal Examination Certificate of the injured is hereby scanned below:-

Medical opinion after X-ray (Kaptaan) - 1st.

Investigations advised: *Medical opinion after X-ray (Kaptaan) - 1st.*

Opinion of Specialist: Operation Notes / X-Ray report: *Radiological opinion shows: No bony injury & foreign body seen on X-rays R & L.*

Acc. to Surgical opinion, Injury is *Acc. to Surgical opinion, Injury is* *muscle deep.*

Nature of Injuries: *Acc. to Surgical opinion, Injury is* *muscle deep.*

(Qisas & Diyat Law): *Acc. to Surgical opinion, Injury is* *muscle deep.*

Probable Duration of Injuries: *Acc. to Surgical opinion, Injury is* *muscle deep.*

Final opinion for KUO Injuries: *Acc. to Surgical opinion, Injury is* *muscle deep.*

(to be given within 21 days)

Government fee Rs 200/..... Received.

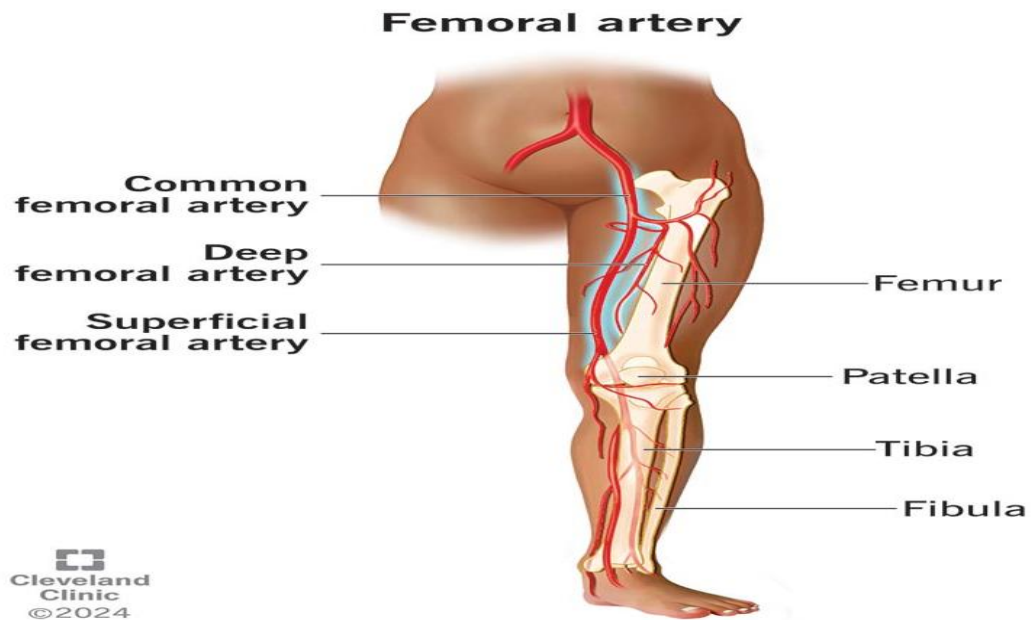
Medico legal Examiner
(Name & Designation with stamp)

adds that Ghulam Abbas (injured/victim, mentioned above) has also supported aforementioned allegation against the petitioner through his statement recorded under Section: 161 Cr.P.C. and after thorough investigation, said allegation levelled against the petitioner has been established; also adds that after the occurrence as well as registration of the case, petitioner became fugitive from law and he was declared as proclaimed offender; further apprises that rifle .44-bore was recovered from the petitioner during investigation of the case and two empty shells of rifle .44-bore were also found from the place of occurrence at the time of spot inspection and said empty shells were found as having been fired from said rifle as per report of Punjab Forensic Science Agency (available on the record). In view of above, reasonable grounds are available on the record to connect the petitioner with the commission of alleged offence and in such circumstances, abscondence of the petitioner also goes against him and in this regard case of **“MUHAMMAD KHAN versus IQBAL KHAN and another”** (2021 SCMR 2017) can be advantageously referred; relevant portion of the same is hereby reproduced:-

“Though the absconsion by itself is not proof of guilt nor insurmountably stands in impediment to release of an offender if otherwise a case for grant of bail is made out, nonetheless, it is a circumstance which cannot be invariably ignored without having regard to peculiarity of circumstances in each case as there are situations that possibly entail consequences.”

As far as contention of learned counsel for the petitioner that injuries have been declared as *“Jurh Ghayr Jaifah Mutalahimah”* attracting offence under Section: 337 F(iii), P.P.C. and Section: 324 PPC is not applicable in the case as fires hit at legs is concerned, suffice it to say that if injury has been caused below knee, then applicability of Section: 324 PPC requires

further probe/inquiry within the purview of sub-section 2 of Section 497 Cr.P.C., however, if injury has been caused above knee on the leg at thigh, then situation is otherwise because femoral artery, which is major blood vessel, is located in thigh starting from groin coming to the back of knee and it supplies oxygen-rich blood to the lower parts of the body. So, femoral artery if damaged can cause lower limb ischemia leading to amputation of limb, compartment syndrome as well as death due to severe blood loss from a major artery in the leg. It would be advantageous to go through the diagram of femoral artery, which is hereby scanned below:-



Therefore, if firearm injury has been caused above knee at thigh of leg, then Section: 324 PPC is *prima facie* applicable/attracted in the case, hence, aforementioned contention of learned counsel for the petitioner is not holding the water. Punishment of offence under Sections: 324 PPC falls within the ambit of prohibitory clause of Section: 497 Cr.P.C.

3. In view of what has been discussed above, instant petition filed by the petitioner for grant of post-arrest bail is without any merit and same is hereby **dismissed**. It goes without saying that observations made hereinabove are just tentative in nature and strictly confined to the disposal of instant bail petition.

(Farooq Haider)
Judge

APPROVED FOR REPORTING

(Farooq Haider)
Judge